

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

April 17, 2025

**Judge Melissa R. McCormick
Dept. CX104**

Department CX104 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5304. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Anderson v. Western Pacific Med-Corp. 2023-01359989	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$1,150,000 class action and PAGA settlement. The court has the following questions and comments 1. Were the motion papers served on the LWDA? The proofs of service filed with the court (ROA 39, 47) do not

		include the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The parties should provide plaintiff's anticipated total amount to be received (including for any individual claims and excluding any enhancement payment). 3. The parties should provide the high and low class payments, and the high, low and average PAGA payments. 4. The "PAGA Released Claims" provision is overbroad. Releases for aggrieved employees other than plaintiff should not release more than the civil penalties available under PAGA based on the facts alleged in the first amended complaint and the notice letter(s) to the LWDA. 5. The dispute procedure in the settlement, notice, and notice of estimated settlement award should be revised to state (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. 6. Plaintiff's counsel should submit evidence substantiating the amount of not-to-exceed litigation costs (e.g., itemized litigation costs incurred to date). 7. Absent unique circumstances, the court is unlikely to approve an enhancement payment in excess of \$5,000. If unique circumstances warrant the higher amount plaintiff seeks, plaintiff should submit a declaration and/or other information explaining those circumstances with the supplemental filings. 8. Plaintiff's brief states that plaintiff's enhancement payment is in part in exchange for plaintiff's general release of claims and section 1542 waiver. Brief (ROA 53) at 8:10. An enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general. The court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release.
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		judgment. The judgment should be posted for at least 180 days. <u>As to the proposed order (ROA 43):</u> 20. The proposed order should be revised consistent with the above. 21. In the first paragraph of the proposed order, the words "and PAGA" should be added after "Class" and before "Action." 22. The second sentence in the first paragraph should be revised to state: "The court finds the settlement to be fair, adequate and reasonable, and in the best interests of the class members." 23. The final approval hearing date in paragraph 15 should be corrected. In addition, the parties should propose a date for the final approval hearing and include it in paragraphs 15 and 19. The court holds final approval hearings on Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. 24. Paragraph 18 should be removed. 25. The settlement agreement and any amendment(s) thereto and the class notice packet (in English, Spanish and any other languages) should be attached to the proposed order as exhibits. The hearing on plaintiff's motion for preliminary approval is continued to <u>August 21, 2025 at 2:00 p.m.</u> in Department CX104 to enable the parties to address and respond to the above issues. See <i>also</i> Department CX104 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service.
2	Benyard v. Navien, Inc. 2024-01429015	<u>Defendant Navien, Inc.'s Motion to Compel Arbitration</u> Defendant Navien, Inc. moves for an order compelling arbitration of plaintiff Ian Benyard's individual claims and striking Benyard's class claims. Benyard filed a statement of